

Codifying the Redbook

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Workshop: February 6, 2024

Upcoming Events

Virtual Member Meeting Tomorrow at 3–4 p.m. ET / 12–1 p.m. PT.

Skills to Win Training

February 10, 2025

Our Skills to Win trainings will take place on Monday and Wednesday evenings, on February 10, 12, 17, 19, 24, and 26 from 7–9 p.m. ET / 4–6 p.m. PT. Skills to Win is an organization that helps communities and unions across the country to identify and respond to challenges, while developing greater capacity to make democratic change.

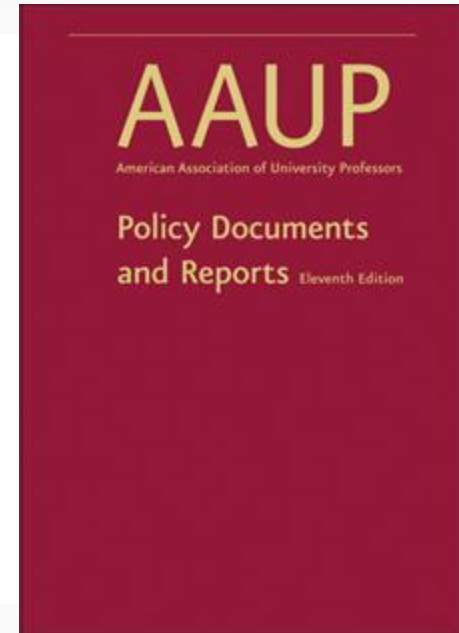
Anticipatory Obedience: What's Happening on Your Campus?

February 11, 2025

The Trump administration and many state governments appear poised to accelerate attacks on academic freedom, shared governance, and higher education as a public good. They will likely attack the curricular authority of the faculty, including the ability to engage in teaching and research on certain topics. Join us in a virtual discussion of this issue, what is going on on your campus, and how we can respond.

The “Redbook”

- Official title: *Policy Documents and Reports*
- Eleventh edition (Twelfth this April!)
- Significantly enlarged
- Updated statistical and legal Information
- Larger number of sections that are more thematically organized
- Makes an excellent gift for new administrators



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Chapters, Conferences, and AAUP Policies

“A major responsibility of a chapter or conference is to seek the adoption or retention of local institutional regulations that comport with Association policies.”

Introduction, *AAUP Policy Documents and Reports* (“Redbook”),
Tenth Edition, 2006

It is advantageous for handbooks and CBAs to specifically cite AAUP policy statements for a number of reasons.

- Doing so might incorporate by reference “case law” as it has been developed by the AAUP over the years, for example in censure and sanction cases.
- Specific references to AAUP policy documents supports a claim that the content of derivative AAUP policies should be used to interpret a handbook or contract.

Core Redbook Documents

- *1940 Statement of Principles on Academic Freedom and Tenure*
- *Recommended Institutional Regulations on Academic Freedom and Tenure*
- *Statement on Procedural Standards in the Renewal or Nonrenewal of Faculty Appointments*
- *Statement on Government of Colleges and Universities*

Policy Areas for Discussion

- Academic Freedom and Campus Speech*
- Dismissal and Suspension*
- Financial Exigency
- Academic Program Discontinuance
- Nonrenewal of Appointment
- Intellectual Property

Academic Freedom and Campus Speech

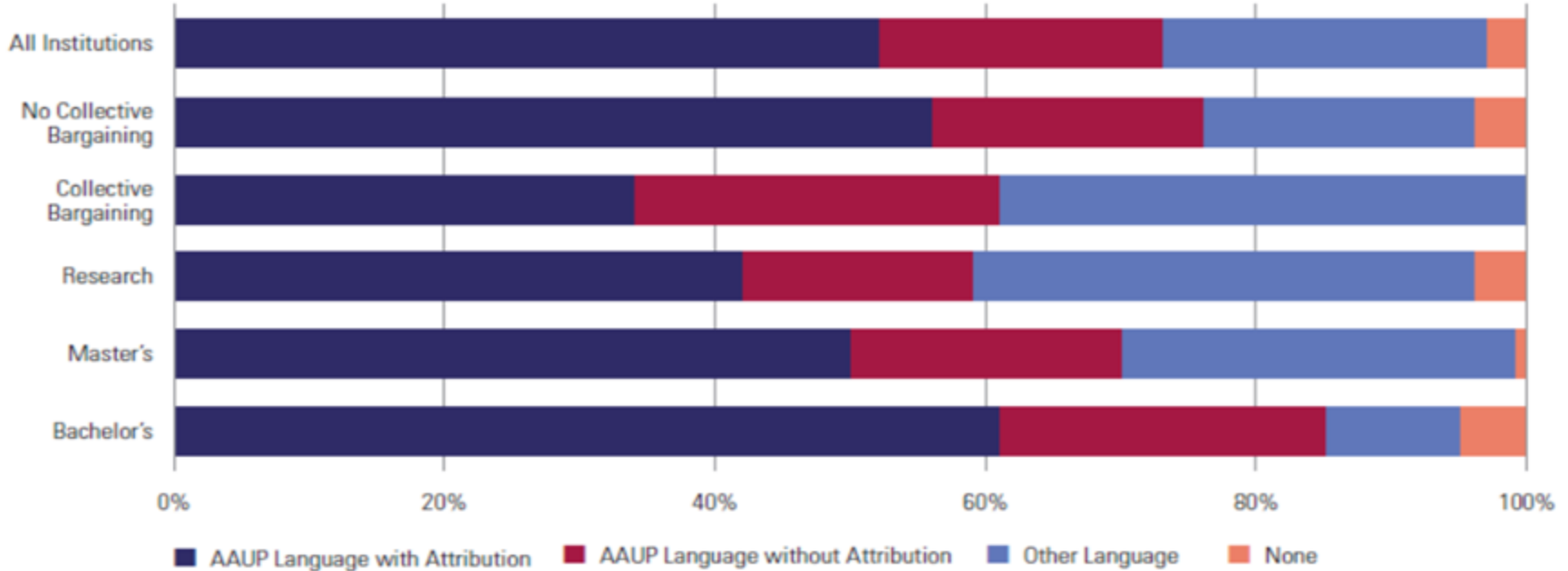
1940 Statement of Principles on Academic Freedom and Tenure

- The AAUP's most significant policy document
- Joint formulation of the AAUP and the American Association of Colleges and Universities (AAC&U)
- Endorsed by more than 280 scholarly societies and higher-education organizations
- Represents a consensus in American higher education about the meaning and purpose of academic freedom and tenure
- Incorporated in hundreds of faculty handbooks and collective bargaining agreements

FIGURE 3

The 1940 *Statement* is the Primary Source of Academic Freedom Language

Provenance of Academic Freedom Statements, by Institution Type



Academic Freedom

- The AAUP's conception of academic freedom is tied not to the First Amendment but to the **special professional role** of instructors and scholars in higher education.
- Some speech **may be** the basis for adverse action, even if it falls short of the usual free speech exemptions: e.g., speech demonstrating disciplinary incompetence or violating standards of professional ethics.
- Academic freedom covers some speech that might not otherwise be protected under the First Amendment (e.g., speech at private institutions, intramural speech at public institutions).

What is Academic Freedom?

- Freedom in research and publication
- Freedom in the classroom
- Freedom of extramural utterances
- Freedom of intramural utterances

1915 *Declaration of Principles on Academic Freedom and Academic Tenure*

[Classroom] utterances ought always to be considered privileged communications. Discussions in the classroom ought not to be supposed to be utterances for the public at large. They are often designed to provoke opposition or arouse debate. It has, unfortunately, sometimes happened in this country that sensational newspapers have quoted and garbled such remarks.”

Freedom of Extramural Utterances

- The freedom “to address the larger community with regard to any matter of social, political, economic, or other interest, without institutional discipline or restraint.”
- Unique to the United States.
- This freedom was central to the founders of the AAUP because of the many dismissals that occurred due to extramural utterances.
- It is also the most controversial aspect of academic freedom, as it is not necessarily related to professional expertise.

“The controlling principle is that a faculty member’s expression of opinion as a citizen cannot constitute grounds for dismissal unless it clearly demonstrates the faculty member’s unfitness for his or her position. Extramural utterances rarely bear upon the faculty member’s fitness for the position.”

Joint Statement on Rights and Freedoms of Students

“Students and student organizations should be free to examine and discuss all questions of interest to them and to express opinions publicly and privately. They should always be free to support causes by orderly means that do not disrupt the regular and essential operations of the institution.”

Students facing severe institutional sanctions should be afforded a hearing before a faculty/student committee, in which the administration bears the burden of proof.

“Academic Freedom in Times of War”

“It is in tumultuous times that colleges’ and universities’ stated commitments to protect academic freedom are most put to the test. As the Israel-Hamas war rages and campus protests proliferate, institutional authorities must refrain from sanctioning faculty members for expressing politically controversial views and should instead defend their right, under principles of academic freedom, to do so.”

Sample Article on Academic Freedom

A. Academic freedom means freedom of teaching, research, intramural and extramural speech. Faculty members are entitled to the academic freedom to speak out about the governance of their institution as well as the freedom to speak out as a citizen about important issues.

B. Faculty members are entitled to freedom in research and in the publication of results.

C. Faculty members are entitled to freedom in the classroom in presenting and discussing their subject. Faculty and instructional staff members must have primary responsibility for selecting instructional materials, defining course content and determining the methods of evaluating student performance in their classes. They must work in concert with their colleagues to ensure coherence of the curriculum and consistency in applying it, subject to academic standards accepted within the community of scholars and accreditation requirements. They should be careful, however, in their teaching not to introduce and to dwell upon matter, particularly controversial matter, which has no relation to their subject. Free inquiry includes pertinent controversy.

D. Faculty members are members of a learned profession and representatives of an educational institution. They should be aware that when they speak or write as citizens, their special post in the community imposes special obligations particularly since they are free from institutional censorship of, or discipline for, their role as citizens. As persons of learning and as educators they must recognize that the public may judge their profession and their institution by their utterances. They should avoid creating the impression that they speak for the University.

E. No arbitrary, capricious, or discriminatory restriction or reprisal shall be imposed on any faculty member for participation (or for non-participation) in a non-University activity, whether as a service to the general public or for private remuneration. Any alleged violation of this provision may be subject to the grievance provision herein provided.

Dismissal and Suspension

- Probationary faculty members are sometimes *nonreappointed* (their appointments expire and are nonrenewed).
- Faculty members sometimes have an ongoing appointment terminated.
- Faculty appointments may be terminated only for cause or because of financial exigency or program discontinuance.

Dismissal for Cause: Regulation 5

The protections discussed here apply to all faculty members prior to the expiration of their appointments (tenured appointments do not expire).

Dismissal for Cause

The AAUP does not define “adequate cause.”

Instead, the *Statement on Procedural Standards in Faculty Dismissal Proceedings* assumes that institutions will establish their own definitions “bearing in mind the 1940 *Statement* and standards that have developed in the experience of academic institutions.”

Dismissal for Cause

But Regulation 5 *constrains* what may count as adequate cause.

“Adequate cause for dismissal will be related, directly and substantially, to the fitness of faculty members in their professional capacities as teachers or researchers.”

Dismissal for Cause

In 1973, the AAUP-AAC&U Commission on Academic Tenure in Higher Education observed that “Adequate cause should be restricted to

- demonstrated incompetence or dishonesty in teaching or research,
- substantial and manifest neglect of duty, or
- personal conduct which substantially impairs the individual’s fulfillment of institutional responsibilities.”

Dismissal for Cause (Regulations 5 and 6)

The essential elements of a dismissal proceeding:

- written statement of charges;
- **opportunity for a prior hearing before an elected body of peers;**
- **burden of proof resting with the administration;**
- the right to present evidence and cross-examine witnesses;
- a decision based on the record of the hearing, with an evidentiary standard of clear and convincing evidence;
- the right to appeal to the governing board.

Suspensions

AAUP policies distinguish between

- a suspension imposed pending a dismissal hearing
- a suspension imposed as a sanction

Pre-Dismissal Suspensions (Regulation 5c[1])

- may only be imposed if immediate physical harm is threatened
- should involve prior consultation with an appropriate faculty committee
- should be paid
- must be treated as a dismissal if it is intended to be final.

Sanctions (Regulation 7)

Major sanctions (including any suspension from core faculty duties) require the same procedural protections as dismissal for cause.

Minor sanctions (such as a letter of reprimand) may be imposed by the administration without a hearing, but the faculty member must be able to ask an elected faculty committee for review.

Student Due Process Rights

Joint Statement on Rights and Freedoms of Students

Students facing severe institutional sanctions should be afforded a hearing before a faculty/student committee, in which the administration bears the burden of proof.

Elements of a Strong Disciplinary Article

- All discipline, including suspension and termination, only for “adequate cause” or “just cause” (as opposed to “at will,” which does not require a legitimate and verifiable reason for dismissal)
- Progressive discipline following well-defined steps that increase in severity of consequences
- Clear timelines of calendar days or working days
- Notification of union officers about all disciplinary meetings
- Hearing before a panel of colleagues
- Arbitration provision with a requirement that the arbitrator is familiar with higher education
- Except in cases of egregious actions, such as theft, assault, or other severe misconduct, first and second steps of progressive discipline should precede a disciplinary suspension

To look at examples of disciplinary language, or other language, in the [Contract Database](#), email mowens@aaup.org for access.

What are the standards of just cause?

If your handbook or union contract has the phrase “just cause” or “adequate cause,” the employer must meet the following seven standards when applying discipline:

1. Fair Notice
2. Prior Enforcement
3. Due Process
4. Substantial Evidence
5. Equal Treatment
6. Progressive Discipline
7. Mitigating and Extenuating Circumstances

More here: <https://labornotes.org/2019/01/using-just-cause-defend-against-unfair-discipline>

Financial Exigency

Financial Exigency (Recommended Institutional Regulation 4c)

Definition: “A **severe financial crisis** that fundamentally compromises the academic integrity of the institution **as a whole** and that cannot be alleviated by less drastic means” than terminating appointments.

4c contains a list of representative “less drastic means.”

4C: Faculty Involvement

Regulation 4c requires **informed** faculty participation in every phase of decision-making related to the declaration of financial exigency, the reduction or closing of programs, and the resulting terminations.

4c: Procedural Constraints

- Affected faculty members will promptly be informed in writing and provided at least thirty days to respond.
- A tenured faculty appointment should not be terminated before an untenured appointment except in extraordinary circumstances.
- New appointments should not be made except in extraordinary circumstances.

Regulation 4c: Individual Faculty Rights

- The institution will make “every effort” to find a faculty member another suitable position within the institution
- Affected faculty members have the right to a hearing before a faculty body:
 - Previous **faculty** judgments in the matter are “presumptively valid”
 - But the burden of proof on other issues rests with the administration.
- Severance salary or notice, and recall rights.

“Force Majeure” Clauses: Bad!

“[H]andbook or CBA provisions allowing an administration to invoke force majeure (or catastrophic conditions, act of God, extraordinary circumstances, and the like) to nullify existing policies, unilaterally shutter programs, and terminate tenure are inimical to principles and standards of academic freedom and governance. Faculty should therefore steadfastly oppose their inclusion in CBAs, faculty contracts and letters of appointment, and faculty handbooks.”

—*Special Report: COVID-19 and Academic Governance* (2021)

Core Elements of Financial Exigency Language

- Faculty must be notified of the financial exigency
- At least five years of the institution's audited financial statements must be released to the faculty
- Detailed program, department, administrative, and non-academic unit budgets must be released to the faculty
- Faculty will produce written findings about the financial status of the institution and recommendations for changes, if needed
- Language to detail the process, order of, and severance provided for faculty reductions
- Language for a call-back provision

Search “financial exigency” in the [Contract Database](#) to find examples that incorporate these key elements. Email mowens@aaup.org for access.

Program Discontinuance

Regulation 4d, “Discontinuance of Program or Department for Educational Reasons”

Contains the same two basic kinds of standards among its specific provisions:

- Those that ensure that the collective faculty plays a meaningful role in all decision-making (governance)
- Those that ensure that the laid off faculty members have the opportunity to contest the decision with an elected faculty hearing body (due process)

Regulation 4d, “Discontinuance of Program or Department for Educational Reasons”

Key specific language:

“The decision to discontinue formally a program or department of instruction will be based essentially upon educational considerations, **as determined primarily by the faculty** as a whole or an appropriate committee thereof.

“‘Educational considerations’ **do not include cyclical or temporary variations in enrollment**. They must reflect long-range judgments that the educational mission of the institution as a whole will be enhanced by the discontinuance.”

Sample CBA Language for Curriculum Changes

ARTICLE. Curriculum Changes.

According to AAUP's Statement on Government of Colleges and Universities the faculty has primary responsibility for curriculum, subject matter, and methods of instruction. If the institution believes that a change in curriculum must take place for any reason, the faculty will first receive in writing the stated problem and the employer's proposed changes to the curriculum intended to solve the problem. The faculty union will then review the curriculum and make their own recommendations for curriculum changes, if any, and solutions to the problem. Faculty will have access to all information necessary to complete the review and formulate recommendations. Once complete, the faculty will present their recommendations in an open session of a Board of Trustees meeting and the Board will vote on the recommendations.

Nonrenewal

Statement on Procedural Standards in the Renewal or Nonrenewal of Faculty Appointments

- Applies to all faculty on full-time renewable term appointments
- Elaborates procedural rights set out in Regulations 2 and 10 of the *RIR*
- Purpose is to protect the academic freedom of full-time faculty members without tenure

Statement on Procedural Standards in the Renewal or Nonrenewal of Faculty Appointments

Key procedural rights:

1. A written statement of the reasons for the nonrenewal
2. Timely notice of nonrenewal, based on length of service
3. Opportunity to contest the decision with a faculty body if alleging inadequate consideration, academic freedom violations, or discrimination

Statement on Procedural Standards in the Renewal or Nonrenewal of Faculty Appointments

What to incorporate, in rank order:

1. The entire statement verbatim.
2. The basic standards on the previous slide, reasons, timely notice, and review, applied to all full-time faculty members
3. The basic standards on the previous slide, reasons, timely notice, and review, applied to all tenure-track faculty members

Intellectual Property

Normative Principles of Academic Intellectual Property

Statement on Intellectual Property:

“Course syllabi at many institutions are considered public documents; indeed, they may be posted on universally accessible websites. It is thus to be expected that teachers everywhere will learn from one another’s syllabi and that syllabi will be disseminated as part of the free exchange of academic knowledge.”

Normative Principles of Academic Intellectual Property

“Faculty lectures or original audiovisual materials . . . **unless** specifically and voluntarily created as **works made for hire**, constitute **faculty intellectual property**. As components of faculty-designed online courses, they cannot be revised, edited, supplemented, or incorporated into courses taught by others without the consent of the original creator. Nor can an online course as a whole be assigned to another instructor without the consent of the faculty member who created the course, unless, once again, the faculty member agreed to treat the course as a work made for hire with such ownership rights residing in the institution.”

Normative Principles of Academic Intellectual Property

“Faculty governing bodies have a special—and increasing—responsibility to ensure that faculty members are not pressured to sign work-for-hire agreements against their will.”

Sample Language on Intellectual Property & Course Shells

NEW ARTICLE: COPYRIGHT OWNERSHIP AND INTELLECTUAL PROPERTY

Section 1. Course Delivery and Copyright. Courses and course delivery shall not be recorded (audio- or video-taped or digitally captured) without prior knowledge and consent of the faculty member. Such recordings are not to be re-used without the written consent of the faculty member. Copyright of all course material, including but not limited to recordings of courses, course presentations, computer-assisted instructional content, course content developed, and other digital or physical materials created by the faculty member(s), shall be owned by the faculty member(s).

Section 2. Intellectual Property. The faculty member (or an appropriate faculty body) who develops course content for use in the classroom or through online delivery through the University learning management system shall exercise control over the future use, modification, and distribution of instructional material and intellectual property, and shall determine whether the material should be revised or withdrawn from use.

Section 3. Permissions. If the Administration assigns a faculty member to teach a course through the learning management system that contains another University faculty member's material, the Administration must obtain written permission from said University faculty member(s), who retains the rights set forth in the Agreement. The request for permission shall state that refusal to grant permission for use of the material has no penalty, financial or otherwise.

THANK YOU!

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- <https://www.facebook.com/AAUPNational>
- <https://academeblog.org/>